Count 2: Two Strongest Defence Points

Briefing for the Count 1 oralist (surrebuttal)

Point 1: Pallavon itself gave the schools a military purpose

In plain words. A building can be a military objective because of its **purpose**, meaning what it is *going to be used for*. Here, the purpose was not Thorn's guess. **Pallavon's own Cabinet declared it.**

The facts

- **¶37:** the Cabinet decided to use schools over 2 hectares and within 1 km of the railway "**as new sites to train recruits and prepare operations**".
- **20** schools matched: **12** were converted, then **5** more after the strikes (¶41), then the last **3** were evacuated (¶42).
- **Every one of the 20 matching schools** was either converted or emptied. The evacuation was **the same first step** taken every time before.

The law

Hirgigo holds that purpose means intended future use, and the Triffterer and Ambos Commentary agrees. Article 52(3) covers doubt about **present use** only, not purpose.

> **Say:** "The purpose was declared by Pallavon's own Cabinet. Every one of the twenty schools fitting its criteria was converted or evacuated. These three had taken the same first step."

> **If the Prosecution's rebuttal says "20 fit, only 12 were converted":**
> "The other eight were not left alone. Five were converted after the strikes, and the last three were evacuated. All twenty were taken out of teaching."

Point 2: Thorn had no authority over the person he spoke to

In plain words. "Ordering" needs **authority over the person who carries out the act**. The only recorded exchange about the strike is between Thorn and **the President, his superior**. A general cannot "order" his own President.

The facts

- **¶42** says Thorn "gave the order", and **the same paragraph records the conversation**. That conversation is with President Veyar.
- No one under Thorn is recorded as receiving an instruction.
- The campaign was the President's own: "we are stinging them where it hurts" (¶35).

The law

Kordić [28]: ordering means a person **in authority** instructs another. Inducing needs **both** prompting **and** a substantial contribution (*Kordić* [27]; *Ntaganda*). Advice to a superior is neither.

> **Say:** "The only recorded exchange is with the President, Thorn's superior. Thorn had no authority over him. That is advice, not an order."

> **If the Prosecution's rebuttal says "Thorn was Chief of the Defence Force, so he commanded the missile forces":**
> "The Agreed Facts do not record Thorn instructing the forces who fired. The only exchange recorded is with the President. A finding must rest on evidence, not on a title."

For the surrebuttal speaker

- Answer **only** what the Prosecution raised in rebuttal.
- Pick **one** of these points, whichever the rebuttal attacked.
- Say "**the same first step**". Never "positive step", and never "about to become a training camp".
- Say "**the same paragraph records the conversation**". Never "then the President asked".